

COMMITTEE ON JUDICIARY
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1448
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-1204, Arizona Revised Statutes, as amended by
3 Laws 2025, chapter 172, section 1, is amended to read:

4 13-1204. Aggravated assault; classification; definitions

5 A. Until January 1, 2033, a person commits aggravated assault if
6 the person commits assault as prescribed by section 13-1203 under any of
7 the following circumstances:

8 1. If the person causes serious physical injury to another.

9 2. If the person uses a deadly weapon or dangerous instrument.

10 3. If the person commits the assault by any means of force that
11 causes temporary but substantial disfigurement, temporary but substantial
12 loss or impairment of any body organ or part or a fracture of any body
13 part.

14 4. If the person commits the assault while the victim is bound or
15 otherwise physically restrained or while the victim's capacity to resist
16 is substantially impaired.

17 5. If the person commits the assault after entering the private
18 home of another with the intent to commit the assault.

19 6. If the person is eighteen years of age or older and commits the
20 assault on a minor under fifteen years of age.

21 7. If the person commits assault as prescribed by section 13-1203,
22 subsection A, paragraph 1 or 3 and the person is in violation of an order
23 of protection issued against the person pursuant to section 13-3602 or
24 13-3624.

25 8. If the person commits the assault knowing or having reason to
26 know that the victim is any of the following:

27 (a) A first responder or a person summoned and directed by the
28 first responder.

1 (b) A constable or a person summoned and directed by the constable
2 while engaged in the execution of any official duties or if the assault
3 results from the execution of the constable's official duties.

4 (c) A teacher or other person employed by any school and the
5 teacher or other employee is on the grounds of a school or grounds
6 adjacent to the school or is in any part of a building or vehicle used for
7 school purposes, any teacher or school nurse visiting a private home in
8 the course of the teacher's or nurse's professional duties or any teacher
9 engaged in any authorized and organized classroom activity held on other
10 than school grounds.

11 (d) A health care worker while engaged in the health care worker's
12 work duties or a health care practitioner who is certified or licensed
13 pursuant to title 32, chapter 13, 14, 15, 17 or 25, or a person summoned
14 and directed by the licensed health care practitioner while engaged in the
15 person's professional duties. This subdivision does not apply if the
16 person who commits the assault does not have the ability to form the
17 culpable mental state because of a mental disability, developmental
18 disability or cognitive disability or because the person is seriously
19 mentally ill, as defined in section 36-550.

20 (e) A prosecutor while engaged in the execution of any official
21 duties or if the assault results from the execution of the prosecutor's
22 official duties.

23 (f) A code enforcement officer as defined in section 39-123 while
24 engaged in the execution of any official duties or if the assault results
25 from the execution of the code enforcement officer's official duties.

26 (g) A state or municipal park ranger while engaged in the execution
27 of any official duties or if the assault results from the execution of the
28 park ranger's official duties.

29 (h) A public defender while engaged in the execution of any
30 official duties or if the assault results from the execution of the public
31 defender's official duties.

32 (i) A judicial officer while engaged in the execution of any
33 official duties or if the assault results from the execution of the
34 judicial officer's official duties.

35 (j) An employee of a law enforcement agency, other than a peace
36 officer, while engaged in the execution of any official duties.

37 (k) A public transit employee who performs duties on and off a
38 vehicle while engaged in transferring members of the community to and from
39 destinations in a bus, van or shuttle.

40 (l) An airport employee who interacts with the public while engaged
41 in the airport employee's work duties.

42 (m) A railway worker while engaged in operating a train, light rail
43 or passenger rail or performing track maintenance.

44 (n) AN EMPLOYEE OF ONE OF THE FOLLOWING WHO IS ENGAGED IN THE
45 EMPLOYEE'S WORK DUTIES:

46 (i) A PUBLIC UTILITY AS PRESCRIBED IN SECTION 44-1376.

47 (ii) A LICENSED TELECOMMUNICATIONS PROVIDER.

1 (iii) A LICENSED VIDEO SERVICE PROVIDER.

2 ~~[(iv) A UTILITY AS DEFINED IN SECTION 40-491.]~~

3 9. If the person knowingly takes or attempts to exercise control
4 over any of the following:

5 (a) A first responder's or other officer's firearm and the person
6 knows or has reason to know that the victim is a first responder or other
7 officer employed by one of the agencies listed in paragraph 10,
8 subdivision (a), item (i), (ii), (iii), (iv) or (v) of this subsection.

9 (b) Any weapon other than a firearm that is being used by a first
10 responder or other officer or that the first responder or other officer is
11 attempting to use, and the person knows or has reason to know that the
12 victim is a first responder or other officer employed by one of the
13 agencies listed in paragraph 10, subdivision (a), item (i), (ii), (iii),
14 (iv) or (v) of this subsection.

15 (c) Any implement that is being used by a first responder or other
16 officer or that the first responder or other officer is attempting to use,
17 and the person knows or has reason to know that the victim is a first
18 responder or other officer employed by one of the agencies listed in
19 paragraph 10, subdivision (a), item (i), (ii), (iii), (iv) or (v) of this
20 subsection. For the purposes of this subdivision, "implement" means an
21 object that is designed for or that is capable of restraining or injuring
22 an individual. Implement does not include handcuffs.

23 10. If the person meets both of the following conditions:

24 (a) Is imprisoned or otherwise subject to the custody of any of the
25 following:

26 (i) The state department of corrections.

27 (ii) The department of juvenile corrections.

28 (iii) A law enforcement agency.

29 (iv) A county or city jail or an adult or juvenile detention
30 facility of a city or county.

31 (v) Any other entity that is contracting with the state department
32 of corrections, the department of juvenile corrections, a law enforcement
33 agency, another state, any private correctional facility, a county, a city
34 or the federal bureau of prisons or other federal agency that has
35 responsibility for sentenced or unsentenced prisoners.

36 (b) Commits an assault knowing or having reason to know that the
37 victim is acting in an official capacity as an employee of any of the
38 entities listed in subdivision (a) of this paragraph.

39 11. If the person uses a simulated deadly weapon.

40 12. if the person is aided by two or more accomplices who aid in
41 committing the assault, the assault is directed at a single person and the
42 assault results in physical injury.

43 B. Until January 1, 2033, a person commits aggravated assault if
44 the person commits assault by either intentionally, knowingly or
45 recklessly causing any physical injury to another person, intentionally
46 placing another person in reasonable apprehension of imminent physical

1 injury or knowingly touching another person with the intent to injure the
2 person, and both of the following occur:

3 1. The person intentionally or knowingly impedes the normal
4 breathing or circulation of blood of another person by applying pressure
5 to the throat or neck or by obstructing the nose and mouth either manually
6 or through the use of an instrument.

7 2. Any of the circumstances exists that are set forth in section
8 13-3601, subsection A, paragraph 1, 2, 3, 4, 5 or 6.

9 C. A person who is convicted of intentionally or knowingly
10 committing aggravated assault on a first responder pursuant to subsection
11 A, paragraph 1 or 2 of this section shall be sentenced to imprisonment for
12 not less than the presumptive sentence authorized under chapter 7 of this
13 title and is not eligible for suspension of sentence, commutation or
14 release on any basis until the sentence imposed is served.

15 D. If a person is convicted of committing aggravated assault on a
16 peace officer pursuant to this section and the trier of fact determines
17 that section 13-701, subsection D, paragraph 17 applies, the person shall
18 be sentenced to two years more than would otherwise be imposed for the
19 offense. The additional sentence imposed under this subsection is in
20 addition to any enhanced punishment that may be applicable under this
21 section or chapter 7 of this title. The person is not eligible for
22 suspension of sentence, commutation or release from confinement on any
23 basis, except as specifically authorized by section 31-233, subsection A
24 or B until the sentence imposed is served, the person is eligible for
25 release pursuant to section 41-1604.07 or the sentence is commuted.

26 E. It is not a defense to a prosecution for assaulting a peace
27 officer or a mitigating circumstance that the peace officer was not on
28 duty or engaged in the execution of any official duties.

29 F. Except pursuant to subsections G, H and I of this section,
30 aggravated assault pursuant to subsection A, paragraph 1 or 2, paragraph
31 9, subdivision (a) or paragraph 11 of this section is a class 3 felony
32 except if the aggravated assault is a violation of subsection A, paragraph
33 1 or 2 of this section and the victim is under fifteen years of age it is
34 a class 2 felony punishable pursuant to section 13-705. Aggravated
35 assault pursuant to subsection A, paragraph 3 or 12 or subsection B of
36 this section is a class 4 felony. Aggravated assault pursuant to
37 subsection A, paragraph 9, subdivision (b) or paragraph 10 of this section
38 is a class 5 felony. Aggravated assault pursuant to subsection A,
39 paragraph 4, 5, 6, 7 or 8 or paragraph 9, subdivision (c) of this section
40 is a class 6 felony.

41 G. Aggravated assault pursuant to subsection A, paragraph 1 or 2 of
42 this section committed on a first responder is a class 2 felony.
43 Aggravated assault pursuant to subsection A, paragraph 3 of this section
44 committed on a first responder is a class 3 felony. Aggravated assault
45 pursuant to subsection A, paragraph 8, subdivision (a) of this section
46 committed on a first responder is a class 4 felony unless the assault

1 results in any physical injury to the first responder, in which case it is
2 a class 3 felony.

3 H. Aggravated assault pursuant to subsection A, paragraph 1 or 2 of
4 this section committed on an employee of a law enforcement agency is a
5 class 2 felony. Aggravated assault pursuant to subsection A, paragraph 3
6 of this section committed on an employee of a law enforcement agency is a
7 class 3 felony. Aggravated assault pursuant to subsection A, paragraph 8,
8 subdivision (j) of this section committed on an employee of a law
9 enforcement agency is a class 5 felony unless the assault results in any
10 physical injury to the employee, in which case it is a class 4 felony.

11 I. Aggravated assault pursuant to:

12 1. Subsection A, paragraph 1 or 2 of this section is a class 2
13 felony if committed on a prosecutor.

14 2. Subsection A, paragraph 3 of this section is a class 3 felony if
15 committed on a prosecutor.

16 3. Subsection A, paragraph 8, subdivision (e) of this section is a
17 class 5 felony if the assault results in physical injury to a prosecutor.

18 J. For the purposes of this section:

19 1. "Cognitive disability" has the same meaning prescribed in
20 section 36-551.

21 2. "Developmental disability" has the same meaning prescribed in
22 section 36-551.

23 3. "First responder" means:

24 (a) A peace officer.

25 (b) A firefighter, a fire marshal, a fire inspector, an emergency
26 medical care technician or a paramedic who is engaged in the execution of
27 any official duties.

28 (c) A tribal police officer.

29 4. "Health care worker" means:

30 (a) A person who is employed by or contracted to work at a health
31 care institution that is licensed pursuant to title 36.

32 (b) A person who is employed or contracted to provide health care
33 or related services in a fieldwork setting, including:

34 (i) Home health care, home-based hospice and home-based social
35 work, unless the worker is employed or contracted by an individual who
36 privately employs, in the individual's residence, the worker to perform
37 covered services for the individual or a family member of the individual.

38 (ii) Any emergency services and transport, including the services
39 provided by firefighters and emergency responders.

40 5. "Judicial officer" means a justice of the supreme court, judge,
41 justice of the peace or magistrate or a commissioner or hearing officer of
42 a state, county or municipal court.

43 6. "Mental disability" means a disabling neurological condition, or
44 brain injury, or involuntary impairment as a result of a medication that
45 is administered by a health care provider or a medical procedure that is
46 performed at a health care treatment site.

1 7. "Prosecutor" means a county attorney, a municipal prosecutor or
2 the attorney general and includes an assistant or deputy county attorney,
3 municipal prosecutor or attorney general.

4 Sec. 2. Section 13-1204, Arizona Revised Statutes, as amended by
5 Laws 2025, chapter 172, section 2, is amended to read:

6 13-1204. Aggravated assault; classification; definitions

7 A. Beginning from and after December 31, 2032, a person commits
8 aggravated assault if the person commits assault as prescribed by section
9 13-1203 under any of the following circumstances:

10 1. If the person causes serious physical injury to another.

11 2. If the person uses a deadly weapon or dangerous instrument.

12 3. If the person commits the assault by any means of force that
13 causes temporary but substantial disfigurement, temporary but substantial
14 loss or impairment of any body organ or part or a fracture of any body
15 part.

16 4. If the person commits the assault while the victim is bound or
17 otherwise physically restrained or while the victim's capacity to resist
18 is substantially impaired.

19 5. If the person commits the assault after entering the private
20 home of another with the intent to commit the assault.

21 6. If the person is eighteen years of age or older and commits the
22 assault on a minor under fifteen years of age.

23 7. If the person commits assault as prescribed by section 13-1203,
24 subsection A, paragraph 1 or 3 and the person is in violation of an order
25 of protection issued against the person pursuant to section 13-3602 or
26 13-3624.

27 8. If the person commits the assault knowing or having reason to
28 know that the victim is any of the following:

29 (a) A peace officer or a person summoned and directed by the
30 officer.

31 (b) A constable or a person summoned and directed by the constable
32 while engaged in the execution of any official duties or if the assault
33 results from the execution of the constable's official duties.

34 (c) A firefighter, fire investigator, fire inspector, emergency
35 medical technician or paramedic engaged in the execution of any official
36 duties or a person summoned and directed by such individual while engaged
37 in the execution of any official duties or if the assault results from the
38 execution of the official duties of the firefighter, fire investigator,
39 fire inspector, emergency medical technician or paramedic.

40 (d) A teacher or other person employed by any school and the
41 teacher or other employee is on the grounds of a school or grounds
42 adjacent to the school or is in any part of a building or vehicle used for
43 school purposes, any teacher or school nurse visiting a private home in
44 the course of the teacher's or nurse's professional duties or any teacher
45 engaged in any authorized and organized classroom activity held on other
46 than school grounds.

1 (e) A health care worker while engaged in the health care worker's
2 work duties or a health care practitioner who is certified or licensed
3 pursuant to title 32, chapter 13, 14, 15, 17 or 25, or a person summoned
4 and directed by the licensed health care practitioner while engaged in the
5 person's professional duties. This subdivision does not apply if the
6 person who commits the assault does not have the ability to form the
7 culpable mental state because of a mental disability, developmental
8 disability or cognitive disability or because the person is seriously
9 mentally ill, as defined in section 36-550.

10 (f) A prosecutor while engaged in the execution of any official
11 duties or if the assault results from the execution of the prosecutor's
12 official duties.

13 (g) A code enforcement officer as defined in section 39-123 while
14 engaged in the execution of any official duties or if the assault results
15 from the execution of the code enforcement officer's official duties.

16 (h) A state or municipal park ranger while engaged in the execution
17 of any official duties or if the assault results from the execution of the
18 park ranger's official duties.

19 (i) A public defender while engaged in the execution of any
20 official duties or if the assault results from the execution of the public
21 defender's official duties.

22 (j) A judicial officer while engaged in the execution of any
23 official duties or if the assault results from the execution of the
24 judicial officer's official duties.

25 (k) An employee of a law enforcement agency, other than a peace
26 officer, while engaged in the execution of any official duties.

27 (l) A public transit employee who performs duties on and off a
28 vehicle while engaged in transferring members of the community to and from
29 destinations in a bus, van or shuttle.

30 (m) An airport employee who interacts with the public while engaged
31 in the airport employee's work duties.

32 (n) A railway worker while engaged in operating a train, light rail
33 or passenger rail or performing track maintenance.

34 (o) AN EMPLOYEE OF ONE OF THE FOLLOWING WHO IS ENGAGED IN THE
35 EMPLOYEE'S WORK DUTIES:

36 (i) A PUBLIC UTILITY AS PRESCRIBED IN SECTION 44-1376.

37 (ii) A LICENSED TELECOMMUNICATIONS PROVIDER.

38 (iii) A LICENSED VIDEO SERVICE PROVIDER.

39 [(iv) A UTILITY AS DEFINED IN SECTION 40-491.]

40 9. If the person knowingly takes or attempts to exercise control
41 over any of the following:

42 (a) A peace officer's or other officer's firearm and the person
43 knows or has reason to know that the victim is a peace officer or other
44 officer employed by one of the agencies listed in paragraph 10,
45 subdivision (a), item (i), (ii), (iii), (iv) or (v) of this subsection.

46 (b) Any weapon other than a firearm that is being used by a peace
47 officer or other officer or that the officer is attempting to use, and the

1 person knows or has reason to know that the victim is a peace officer or
2 other officer employed by one of the agencies listed in paragraph 10,
3 subdivision (a), item (i), (ii), (iii), (iv) or (v) of this subsection.

4 (c) Any implement that is being used by a peace officer or other
5 officer or that the officer is attempting to use, and the person knows or
6 has reason to know that the victim is a peace officer or other officer
7 employed by one of the agencies listed in paragraph 10, subdivision (a),
8 item (i), (ii), (iii), (iv) or (v) of this subsection. For the purposes
9 of this subdivision, "implement" means an object that is designed for or
10 that is capable of restraining or injuring an individual. Implement does
11 not include handcuffs.

12 10. If the person meets both of the following conditions:

13 (a) Is imprisoned or otherwise subject to the custody of any of the
14 following:

15 (i) The state department of corrections.

16 (ii) The department of juvenile corrections.

17 (iii) A law enforcement agency.

18 (iv) A county or city jail or an adult or juvenile detention
19 facility of a city or county.

20 (v) Any other entity that is contracting with the state department
21 of corrections, the department of juvenile corrections, a law enforcement
22 agency, another state, any private correctional facility, a county, a city
23 or the federal bureau of prisons or other federal agency that has
24 responsibility for sentenced or unsentenced prisoners.

25 (b) Commits an assault knowing or having reason to know that the
26 victim is acting in an official capacity as an employee of any of the
27 entities listed in subdivision (a) of this paragraph.

28 11. If the person uses a simulated deadly weapon.

29 12. If the person is aided by two or more accomplices WHO aid in
30 committing the assault, the assault is directed at a single person and the
31 assault results in physical injury.

32 B. Beginning from and after December 31, 2032, a person commits
33 aggravated assault if the person commits assault by either intentionally,
34 knowingly or recklessly causing any physical injury to another person,
35 intentionally placing another person in reasonable apprehension of
36 imminent physical injury or knowingly touching another person with the
37 intent to injure the person, and both of the following occur:

38 1. The person intentionally or knowingly impedes the normal
39 breathing or circulation of blood of another person by applying pressure
40 to the throat or neck or by obstructing the nose and mouth either manually
41 or through the use of an instrument.

42 2. Any of the circumstances exists that are set forth in section
43 13-3601, subsection A, paragraph 1, 2, 3, 4, 5 or 6.

44 C. A person who is convicted of intentionally or knowingly
45 committing aggravated assault on a peace officer pursuant to subsection A,
46 paragraph 1 or 2 of this section shall be sentenced to imprisonment for
47 not less than the presumptive sentence authorized under chapter 7 of this

1 title and is not eligible for suspension of sentence, commutation or
2 release on any basis until the sentence imposed is served.

3 D. If a person is convicted of committing aggravated assault on a
4 peace officer pursuant to this section and the trier of fact determines
5 that section 13-701, subsection D, paragraph 17 applies, the person shall
6 be sentenced to two years more than would otherwise be imposed for the
7 offense. The additional sentence imposed under this subsection is in
8 addition to any enhanced punishment that may be applicable under this
9 section or chapter 7 of this title. The person is not eligible for
10 suspension of sentence, commutation or release from confinement on any
11 basis, except as specifically authorized by section 31-233, subsection A
12 or B until the sentence imposed is served, the person is eligible for
13 release pursuant to section 41-1604.07 or the sentence is commuted.

14 E. It is not a defense to a prosecution for assaulting a peace
15 officer or a mitigating circumstance that the peace officer was not on
16 duty or engaged in the execution of any official duties.

17 F. Except pursuant to subsections G, H and I of this section,
18 aggravated assault pursuant to subsection A, paragraph 1 or 2, paragraph
19 9, subdivision (a) or paragraph 11 of this section is a class 3 felony
20 except if the aggravated assault is a violation of subsection A, paragraph
21 1 or 2 of this section and the victim is under fifteen years of age it is
22 a class 2 felony punishable pursuant to section 13-705. Aggravated
23 assault pursuant to subsection A, paragraph 3 or 12 or subsection B of
24 this section is a class 4 felony. Aggravated assault pursuant to
25 subsection A, paragraph 9, subdivision (b) or paragraph 10 of this section
26 is a class 5 felony. Aggravated assault pursuant to subsection A,
27 paragraph 4, 5, 6, 7 or 8 or paragraph 9, subdivision (c) of this section
28 is a class 6 felony.

29 G. Aggravated assault pursuant to subsection A, paragraph 1 or 2 of
30 this section committed on a peace officer is a class 2 felony. Aggravated
31 assault pursuant to subsection A, paragraph 3 of this section committed on
32 a peace officer is a class 3 felony. Aggravated assault pursuant to
33 subsection A, paragraph 8, subdivision (a) of this section committed on a
34 peace officer is a class 5 felony unless the assault results in any
35 physical injury to the peace officer, in which case it is a class 4
36 felony.

37 H. Aggravated assault pursuant to subsection A, paragraph 1 or 2 of
38 this section committed on an employee of a law enforcement agency is a
39 class 2 felony. Aggravated assault pursuant to subsection A, paragraph 3
40 of this section committed on an employee of a law enforcement agency is a
41 class 3 felony. Aggravated assault pursuant to subsection A, paragraph 8,
42 subdivision (j) of this section committed on an employee of a law
43 enforcement agency is a class 5 felony unless the assault results in any
44 physical injury to the employee, in which case it is a class 4 felony.

1 I. Aggravated assault pursuant to:
2 1. Subsection A, paragraph 1 or 2 of this section is a class 2
3 felony if committed on a prosecutor.
4 2. Subsection A, paragraph 3 of this section is a class 3 felony if
5 committed on a prosecutor.
6 3. Subsection A, paragraph 8, subdivision (f) of this section is a
7 class 5 felony if the assault results in physical injury to a prosecutor.
8 J. For the purposes of this section:
9 1. "Cognitive disability" has the same meaning prescribed in
10 section 36-551.
11 2. "Developmental disability" has the same meaning prescribed in
12 section 36-551.
13 3. "Health care worker" means:
14 (a) A person who is employed by or contracted to work at a health
15 care institution that is licensed pursuant to title 36.
16 (b) A person who is employed or contracted to provide health care
17 or related services in a fieldwork setting, including:
18 (i) Home health care, home-based hospice and home-based social
19 work, unless the worker is employed or contracted by an individual who
20 privately employs, in the individual's residence, the worker to perform
21 covered services for the individual or a family member of the individual.
22 (ii) Any emergency services and transport, including the services
23 provided by firefighters and emergency responders.
24 4. "Judicial officer" means a justice of the supreme court, judge,
25 justice of the peace or magistrate or a commissioner or hearing officer of
26 a state, county or municipal court.
27 5. "Mental disability" means a disabling neurological condition, or
28 brain injury, or involuntary impairment as a result of a medication that
29 is administered by a health care provider or a medical procedure that is
30 performed at a health care treatment site.
31 6. "Prosecutor" means a county attorney, a municipal prosecutor or
32 the attorney general and includes an assistant or deputy county attorney,
33 municipal prosecutor or attorney general.

34 Enroll and engross to conform
35 Amend title to conform
And, as so amended, it do pass

QUANG H. NGUYEN
CHAIRMAN

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